

Classification Blockade Doctrine: Deliberate Indifference at the First Control Node

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I. GOVERNING CONTROL CHAIN (LOCKED ORDER — DUTY GOVERNING)

foreseeability

- historically known sex-based harm pathway
- specificity established through comparator (not “general behavior”)

→ uneven start (baseline distortion)

- girls enter under weaker first-stage classification protection
- neutrality already broken

→ duty

- attaches at possible sex-based signal (pre-outcome)
- non-delegable at intake
- requires classification sufficient to activate protected pathway
- governed by Title IX non-discrimination mandate and response obligations

→ knowledge attachment (classification-independent)

- possible sex-based signal observed, reported, or reasonably knowable
- constitutes institutional knowledge under Title IX at the moment of signal
- knowledge attaches independent of classification label or category assignment
- misclassification, downgrade, or alternative labeling does not negate or reset knowledge
- duty is triggered by the signal itself, not by institutional recognition or categorization
- breach occurs when institutional handling of that signal downgrades, bypasses, or fails to activate the required protected pathway

→ classification decision (control node)

- first institutional actor receives signal
- duty is executed or breached at intake
- legal pathway determined through classification

- no downward discretion rule
- ambiguous / qualifying signal must resolve upward into protected category
- downward resolution prohibited
- defines minimum required execution of duty

→ pathway activation / suppression

IF duty executed (upward classification)

- Title IX routing engaged
- Coordinator engaged
- record formation
- aggregation enabled

IF duty breached (downward / bypass classification)

- protected pathway suppressed
- record formation fragmented or absent
- aggregation disabled

→ comparator

- same institution demonstrates:
 - mandatory routing
 - unified records
 - early intervention

→ establishes capacity and correct duty execution pathway

→ statute

- 20 U.S.C. §1681
- 34 C.F.R. §106.30
 - defines qualifying sex-based conduct (signal threshold)
- 34 C.F.R. §106.44(a)
 - knowledge + response duty attaches upon qualifying signal
- 34 C.F.R. §106.8(a)
 - Coordinator routing required
- 34 C.F.R. §106.45
 - grievance + record system activation
- statutory duties attach through qualifying classification + routing

→ tort

- foreseeable harm + supervisory control
- duty exists independent of intent
- breach occurs at classification stage when duty not executed

→ causation

- breach of duty through classification blockade

- continued exposure
 - non-aggregation
 - predictable downstream harm
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II. MECHANISM OF BREACH (CLASSIFICATION BLOCKADE)

possible sex-based signal

- received by institutional actor
- classification discretion exercised

IF downward classification (“teasing / conflict / attention”)

- protected category not engaged
- Title IX pathway not activated
- Coordinator not notified
- records fragmented or not created
- aggregation impossible
- pattern recognition prevented

Result:

- operational knowledge suppressed at system level
 - institution later asserts “no actual knowledge”
 - assertion is produced by its own classification blockade, not by absence of signal
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III. NO DOWNWARD DISCRETION RULE (CONSTRAINT LAYER)

ambiguous or qualifying sex-based signal

- must resolve upward into protected category
- prohibits:
 - category substitution
 - professional judgment downgrade
 - neutrality application under asymmetry

Effect:

- classification floor established

- statutory routing cannot be bypassed
 - knowledge formation preserved
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IV. PATHWAY DIVERGENCE (CONTROL EFFECT)

Upward classification

- Coordinator engaged
- unified record system
- aggregation across incidents
- early intervention
- exposure interrupted

Downward / bypass classification

- Coordinator bypassed
 - fragmented or absent records
 - no aggregation
 - no pattern recognition
 - continued exposure
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V. COMPARATOR LOCK (CAPACITY PROOF)

same institution or comparable systems

- apply upward classification rules in other protected domains
- enforce:
 - mandatory routing
 - centralized records
 - trained classification protocols
 - auditing and correction

Effect:

- proves institutional capacity
 - defeats incapacity defense
 - demonstrates selective non-application
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VI. STATUTORY ATTACHMENT

possible sex-based conduct

- triggers Title IX classification / routing obligation
- proper classification executes duty
- misclassification breaches duty; it does not prevent duty from attaching

- 20 U.S.C. §1681
- sex discrimination prohibition

- 34 C.F.R. §106.30
- definition scope

- 34 C.F.R. §106.44(a)
- actual knowledge + response duty

- 34 C.F.R. §106.8(a)
- Coordinator requirement

- 34 C.F.R. §106.45
- grievance process

misclassification

- operates as statutory evasion mechanism
- prevents activation of required duties
- does not erase underlying signal
- converts existing duty into non-executed duty

VII. TORT ALIGNMENT (PARALLEL LIABILITY)

foreseeable harm pathway

- institutional control over classification
- failure to activate available protective pathway
- breach of duty at intake
- supervision and protection failure
- intent not required

comparator + structure

- show non-application, not inability
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VIII. CAUSATION (STRUCTURAL CONTINUITY)

classification blockade

- suppresses pathway activation
- suppresses record formation
- suppresses aggregation
- suppresses operational knowledge formation
- allows continued exposure
- produces predictable downstream harm

causal chain

- intact from intake to outcome
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IX. ESCAPE ROUTE COLLAPSE (INTEGRATED)

foreseeability dilution

- blocked by comparator specificity

threshold inflation

- blocked by duty at signal

category substitution

- blocked by upward resolution rule

discretion preservation

- blocked by classification constraint

fragmentation / coordinator bypass

- blocked by mandatory routing

neutrality defense

- defeated by uneven start + asymmetry

autonomy shift

- defeated by institutional control

selective autonomy

- defeated by same developmental condition + different protection threshold

knowledge suppression

→ defeated by required record formation

response substitution

→ defeated by correct pathway requirement

intent shield

→ irrelevant to breach

X. FINAL HARD LOCK

foreseeability

→ duty

duty

→ controlled at classification

classification

→ constrained (no downward discretion)

constraint

→ forces pathway activation

pathway activation

→ forces record formation + operational knowledge

knowledge

→ forces statutory + tort obligations

IF classification downgraded / bypassed

→ duty not executed

→ breach occurs at first control node

→ causation proceeds through suppressed pathway activation

XI. SINGLE-LINE DOCTRINAL CLAIM (CAM READY)

Known sex-based harm pathways create a pre-outcome duty that attaches at the moment of signal; where institutional actors exercise downward classification discretion, bypass routing, or

fail to activate the protected pathway, the resulting failure of record formation, aggregation, and operational knowledge is a controlled institutional outcome, not an absence of awareness, and constitutes deliberate indifference at the first control node with resulting statutory and tort liability through foreseeable causal continuity.